

EUROPEAN COURT OF HUMAN RIGHTS
COUR EUROPÉENNE DES DROITS DE L'HOMME

FIFTH SECTION

DECISION

Application no. 29585/05
Bayazet Ruslanovich SHERFEDINOV and others
against Ukraine

The European Court of Human Rights (Fifth Section), sitting on 22 May 2012 as a Committee composed of:
Mark Villiger, *President,*
Ganna Yudkivska,
André Potocki, *judges,*
and Stephen Phillips, *Deputy Section Registrar,*
Having regard to the above application lodged on 29 July 2005,
Having deliberated, decides as follows:

THE FACTS

The application was lodged by nine Ukrainian nationals: Mr Bayazet Ruslanovich Sherfedinov, born in 1983; Mr Nazim Ruslanovich Shefredinov, born in 1986; Mr Renat Rafhatovich Amerkhanov, born in 1968; Mr Ruslan Iskenderovich Fettayev, born in 1970; Mr Niyazi Remziyevich Muradosilov, born in 1972; Mr Nazim Remziyevich Muradosilov, born in 1979; Mr Refat Nuriyevich Sayfullayev, born in 1957; Mr Emil Refatovich Sayfullayev, born in 1984; and Mrs Gulya Shevketovna Sayfullayeva, born in 1955. All applicants except Mr Amerkhanov live in Orlyne, in the Autonomous Republic of Crimea. Mr Amerkhanov lives in Peredove, in the Autonomous Republic of Crimea. Mr Bayazet Ruslanovich Sherfedinov was represented by Mr. Tkach, an advocate practising in Sevastopol. All other applicants were not represented. The Ukrainian

Government ("the Government") were represented by their Agent, Mr Yuriy Zaytsev.

The applicants complained under Article 10 of the Convention about interference with their right to freedom of speech by imposition of fines for spreading information about Hizb ut-Tahrir ("HT"), an international Islamic political party.

They further complained that legal provisions making it punishable for them to discuss among themselves or disseminate informally the philosophy of HT on the mere basis that this organisation is not officially legalised in Ukraine are incompatible with Article 11 of the Convention.

Finally, they complained under Article 13 of the Convention.

The applicants' complaints were communicated to the Government, who submitted their observations on the admissibility and merits. The observations were forwarded to the applicants, who were invited to submit their own observations. No reply was received to the Registry's letter.

By letters dated 29 July 2010 and 23 November 2010, sent by registered post, the applicants and the advocate were notified that the period allowed for submission of observations had expired on 9 June 2010 and that no extension of time had been requested. The applicants' attention was drawn to Article 37 § 1 (a) of the Convention, which provides that the Court may strike a case out of its list of cases where the circumstances lead to the conclusion that the applicant does not intend to pursue the application. However, no response was received.

THE LAW

The Court considers that, in these circumstances, the applicants may be regarded as no longer wishing to pursue their application, within the meaning of Article 37 § 1 (a) of the Convention. Furthermore, in accordance with Article 37 § 1 *in fine*, the Court finds no special circumstances regarding respect for human rights as defined in the Convention and its Protocols which require the continued examination of the case.

In view of the above, it is appropriate to strike the case out of the list.

For these reasons, the Court unanimously

Decides to strike the application out of its list of cases.

Stephen Phillips
Deputy Registrar

Mark Villiger
President